SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

FILED
Superior Court of California
County of San Francisco
APPELLATE DIVISION
JAN 02 2024
CLERK OF THE COURT
BY: Nancy Hilmaslar
Deputy Clerk

Ismail Merino,

Petitioner,

v.

San Francisco Superior Court,

Respondent;

People of the State of California,

Real Party in Interest.

Superior Court No. 23006243

APP - 24 - 8740

PETITION FOR A WRIT OF MANDATE OR PROHIBITION

after order denying motion to dismiss pursuant to Penal Code section 1382
by Hon. Vedica Puri

STAY OF JURY TRIAL REQUESTED

Jury trial call on January 5, 2024 at 9:00 a.m.
Hon. Vedica Puri, Department 17, tel. (415) 551 0317

Manohar Raju, Public Defender
Matt Gonzalez, Chief Attorney
Oliver Kroll, SBN 295333
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Attorneys for Petitioner

QUESTION PRESENTED

Whether the prosecution's failure to interview and subpoena an expert witness constituted good cause to continue Merino's trial past its statutory deadline under Penal Code section 1382.

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SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

Ismail Merino, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	Superior Court No. 23006243

PETITION FOR A WRIT OF MANDATE OR PROHIBITION

Petitioner Ismail Merino alleges:

I. Introduction

1. In this misdemeanor DUI case, Merino's statutory deadline for trial was December 26, 2023. His case was called for trial that day. Trial courtrooms were available. But the prosecution was not ready. Even though the case had been pending for seven months, it had not yet spoken to its expert, had not obtained an opinion, and had failed to put the expert under subpoena.

2. Respondent court nevertheless found good cause to continue the trial, and denied Merino's motion to dismiss pursuant to section 1382.[1] (Exh. F, JAVS audio recording (Dec. 26, 2023), 2:50:32–2:50:47 PM, 2:51:34–2:51:37

[1] Statutory references are to the Penal Code unless otherwise stated.

PM.)[2] It acknowledged that the prosecution was not ready. But it reasoned that, since Merino's prior convictions presented a "serious public safety risk" and it was "extremely concerned about the conduct," it would "give this a few more days." (*Id.* at 2:50:22–2:50:34 PM.) It warned the prosecution that if there was "any more nonsense," then "the case will be dismissed, and then it'll be on the DA to have created a major public safety issue." (*Id.* at 2:50:55–2:51:07 PM.) It told Merino's counsel: "You can writ me if you need to." (*Id.* at 2:50:35–2:50:37 PM.)

3. In denying the motion to dismiss, respondent court abused its direction. There was no valid reason to continue the case past its last day. A prosecutor's lack of preparation for trial is not good cause. And even if the expert had been unavailable—which was not shown—the prosecution's failure to put the expert under subpoena rules out a good cause finding. The prosecution's excuses were indeed "nonsense," and they did not justify a delay.

4. Respondent court also considered irrelevant factors. Merino's prior convictions had no bearing on whether the prosecution met its burden to show good cause for a delay. And when a defendant's right to a speedy trial is violated, a court must dismiss the case: it cannot give the prosecution "a few more days" because it is worried that dismissal would risk public safety.

5. The proper remedy for an erroneous denial of a section 1382 motion is a petition for a writ of mandate before trial begins. (*People v. Wilson* (1963) 60 Cal.2d 139, 152.) Since respondent court's error is manifest and full

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[2] A reporter's transcript has been ordered and will be submitted to this Court as soon as it is available. (See *infra*, p. 13.) Merino files this petition with the JAVS audio recording to avoid further delay and enable this Court to consider his application for a stay. Instructions for listening to the recording are provided in the table of contents of the attached exhibits.

briefing is unnecessary, this Court should issue a peremptory writ in the first instance. (*Ng v. Superior Court* (1992) 4 Cal.4th 29, 34–35.)

6. This Court should also stay the proceedings below while it considers Merino's petition. Absent a stay, Merino would suffer the irreparable harm of a time-barred trial, and potential conviction and imprisonment, despite being entitled to a dismissal under section 1382.

II. Parties and jurisdiction

7. Merino is the defendant in *People v. Ismail Merino Osorio*, no. 23006243, a misdemeanor case pending in respondent court. The People of the State of California are the plaintiff and are named as real party in interest.

8. This Court has jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure sections 1085 and 1103.

9. The exhibits attached to this petition are true and correct copies of the documents listed in the Table of Exhibits above.

III. Facts

10. Merino is charged in a misdemeanor complaint with driving under the influence of alcohol (Veh. Code, § 23152, subd. (a)), driving while having a 0.08% or higher blood alcohol (Veh. Code, § 23152, subd. (b)), and driving with privilege suspended for prior DUI conviction (Veh. Code, § 14601.2, subd. (a)). (Exh. A, complaint, PE 4–6.) A prior DUI conviction and a prior wet reckless conviction are alleged.

11. Merino was arraigned on May 30, 2023, and waived his right to a speedy trial. (Exh. B, minute order (May 30, 2023), PE 8.)

12. At a pretrial conference on September 29, 2023, Merino asserted his right to a speedy trial. (Exh. C, minute order (Sept. 29, 2023), PE 10.) Respondent court set a last day of October 30, 2023. (*Ibid.*)

13. On October 26, 2023, respondent court found good cause to continue the trial, and established a new last day of December 26, 2023. (Exh. D, minute order (Oct. 26, 2023), PE 12.) For the purposes of this writ petition, Merino does not challenge that good cause finding.

14. On December 26, 2023, Merino's case was on calendar for jury trial. (Exh. E, minute order (Dec. 26, 2023), PE 14.) During the morning calendar, respondent court announced: "And folks, I've got courtrooms, so I'm going to send things out to trial." (Exh. F, 10:37:55–10:38:02 AM.)

15. Respondent court called Merino's case. It asked: "Is the prosecution prepared to proceed?" (*Id.* at 11:48:37–11:48:40 AM.) The prosecution replied: "The People are not ready at this time, Your Honor. There's still—ADA Lee is on this case. She's waiting for the expert opinion, and has a scheduled meeting on the 27th, so tomorrow." (*Id.* at 11:48:40–11:48:50 AM.)

16. Merino's counsel argued that the prosecution's failure to meet the expert, obtain an opinion or work up the case was not good cause for a continuance. (*Id.* at 11:48:50–11:49:48 AM.) He pointed out that there was no claim that the delay was linked to COVID-19. (*Id.* at 11:49:48–11:49:50 AM.) He then moved to dismiss the case pursuant to Penal Code section 1382, and made an alternative request for a dismissal pursuant to Penal Code section 1385. (*Id.* at 11:50:12–11:50:26 AM.)

17. Respondent court then asked the parties whether the expert was under subpoena, and whether this was Merino's first DUI. (*Id.* at 11:50:26–11:50:50 AM.) The court passed the case to the afternoon to get this information. (*Id.* at 11:50:57–11:51:03 AM.)

18. Ten other defendants were on misdemeanor calendar for trial call that day. Respondent court did not send any of their cases to trial.[3]

19. Respondent court recalled the case at the end of the afternoon calendar. (*Id.* at 2:49:15 PM.) The court noted that, according to the prosecution, the expert was not under subpoena. (*Id.* at 2:49:41–2:49:43 PM.) The prosecution then stated that Merino had two prior DUI convictions, and had just been sentenced in another DUI case in Redwood City. (*Id.* at 2:49:43–2:50:15 PM.)

20. Respondent court then ruled as follows:

> Okay. So, Mr. Dickson, I hear your pitch: the DA's not ready, the DA's not ready. However, this defendant poses a particularly serious public safety risk. I am extremely concerned about the conduct. So not only would I be denying any, pre-emptively, any request to remove SCRAM, I'm going to give this a few more days, granting a 1050. You can writ me if you need to. And if it's not ready at that time, I'm going to go ahead and dismiss the case. So at this time, the court's finding good cause, granting the prosecution 1050 to continue the case until January 5th. [. . .] and on January 5th, if there is any more nonsense, if this is not ready in any which way, the case will be dismissed, and then it'll be on the DA to have created a major public safety issue. (Exh. F, 2:50:16–2:51:07 PM.)

21. Merino's counsel again objected to the continuance. (*Id.* at 2:51:18–2:51:32 PM.) The Court then denied Merino's motion to dismiss pursuant to Penal Code section 1382. (*Id.* at 2:51:32–2:51:37 PM.)

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[3] The defendants were Everado Hernandez-Ramirez (no. 22004449), Luis Escobar-Herrera (no. 22015080), Manuel Fajardo-Martinez (no. 22003223), Adil Hashmi (no. 23000321), Aminah Mekki (no. 22410912), Demauriye Barfield (no. 23018142), Tariq Mohamed (no. 23006129), Joe Martinez (no. 21000337), Jose Baeza (no. 23012892), William Hutcheon (nos. 2528905, 23003701, 22002380, 21004705), and Leedell Moore (no. 23009480).

IV. Reasons for granting the writ

22. For the reasons given in the attached memorandum of points and authorities, respondent court abused its discretion in finding that good cause existed for continuing Merino's trial.

23. This petition is timely, having been filed within sixty days of respondent court's order denying the motion to dismiss.

24. Merino is irreparably harmed by respondent court's order, since he must wait for trial despite being entitled to a dismissal. He has no plain, speedy or adequate remedy at law for respondent court's order. In particular, a postconviction appeal does not provide an adequate remedy for speedy trial claims: this "represents a considered policy judgment that defendants should seek review of speedy trial claims before trial." (*People v. Johnson* (1980) 26 Cal.3d 557, 574–575; accord *Wilson*, *supra*, 60 Cal.2d at p. 152 ["proper remedy" for erroneous denial of section 1382 motion is "petition for writ of mandate prior to the commencement of trial"].)

V. Application to stay jury trial

25. This Court should stay the proceedings below to prevent Merino from being tried before the Court is able to decide this petition. (See *Elias v. Superior Court* (2022) 78 Cal.App.5th 926, 932 [trial stayed to enable consideration of speedy trial claim]; *Stabio v. Superior Court* (1994) 21 Cal.App.4th 1488, 1493 [same]; *Ibarra v. Municipal Court* (1984) 162 Cal.App.3d 853, 856 [same]; *Lewis v. Superior Court* (1981) 122 Cal.App.3d 494, 496–497 [same].)

26. Absent a stay, Merino would suffer the irreparable harm of a trial, and potential conviction and imprisonment, despite being entitled to a dismissal under section 1382; and there would be a risk that this petition would be rendered moot.

Prayer for relief

Merino requests that this Court—

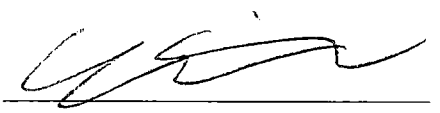
a. issue a stay to prevent respondent court from sending this case to trial;

b. issue a peremptory writ of mandate, directing respondent court to set aside its order denying Merino's motion to dismiss and to enter a new order dismissing the case;

c. issue a peremptory writ of prohibition, directing respondent court not to take any further action in the case except for entering an order dismissing the case;

d. grant any other relief the Court deems just and proper.

Respectfully submitted,



Charlie Dickson
Attorney for Petitioner

VERIFICATION

I, Charlie Dickson, declare:

I am an attorney licensed to practice in California. I am employed by the San Francisco Public Defender. I represent petitioner Ismail Merino. I know the facts alleged in this petition to be true based on my representation of my client. I, rather than my client, am verifying this petition because the facts it contains are more within my knowledge than his. (See Code Civ. Proc., § 446, subd. (a).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 2, 2024, at San Francisco, California.

Charlie Dickson

DECLARATION REGARDING DECEMBER 5, 2023 TRANSCRIPT

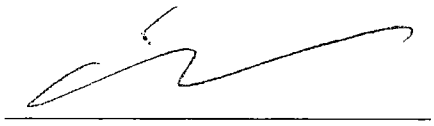
I, Charlie Dickson, declare:

On December 29, 2023, my office ordered a rush transcript of the December 26, 2023 hearing at which the motion to dismiss was denied. The transcript is expected to be produced on or before December 4, 2023.

The JAVS audio recording of the hearing, as well as the rest of the morning's proceedings, is attached to this petition.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 2, 2024, at San Francisco, California.



Charlie Dickson

MEMORANDUM OF POINTS AND AUTHORITIES

I. Standard of review

If a person charged with a misdemeanor is not brought to trial within the deadlines established by section 1382, the case must be dismissed unless good cause for the delay is shown. (Pen. Code, § 1382, subd. (a)(3).) This statute interprets and supplements the state constitution's speedy trial guarantee. (*People v. Martinez* (2000) 22 Cal.4th 750, 766.) It "constitutes [. . .] a legislative determination that a trial delayed more than [the statutory period] is prima facie in violation of a defendant's constitutional right." (*Sykes v. Superior Court* (1973) 9 Cal.3d 83, 89.) For that reason, the prosecution has the burden of justifying a delay past the deadline, even if the continuance was on the court's own motion. (*People v. Hajjaj* (2010) 50 Cal.4th 1184, 1197.) No showing of prejudice is needed: any unexcused delay, even one day's worth, entitles the defendant to a dismissal. (*Martinez*, p. 766; *Hajjaj*, p. 1204.)

A trial court's order denying a motion to dismiss pursuant to section 1382 is reviewed for abuse of discretion. (*Hajjaj*, *supra*, 50 Cal. 4th at pp. 1197–1198.) "The discretion of a trial judge is not a whimsical, uncontrolled power, but a legal discretion, which is subject to the limitations of legal principles governing the subject of its action, and to reversal on appeal where no reasonable basis for the action is shown." (*People v. Jacobs* (2007) 156 Cal.App.4th 728, 737; *In re Anthony M.* (2007) 156 Cal.App.4th 1010, 1016 ["The court abuses its discretion when it acts contrary to law"].)

An order denying a motion to dismiss may be reviewed by a petition for a writ of mandate or prohibition. (*People v. Johnson* (1980) 26 Cal.3d 557, 573 fn. 18.) When seeking pretrial relief, a defendant need not show prejudice

resulting from the violation of the speedy trial right. (*Id.* at p. 574.) This rule "represents a considered policy judgment that defendants should seek review of speedy trial claims before trial." (*Id.* at pp. 574–575.)

II. The prosecution's failure to interview or subpoena its expert did not constitute good cause to continue Merino's trial past its statutory deadline

The prosecution came nowhere close to proving that good cause existed for a delay. Merino was charged in May 2023, and withdrew his time waiver in September 2023. October 30, 2023 was the original trial deadline, and respondent court had continued it a further two months to December 26, 2023. But in all those months, the prosecutor had never spoken to the expert or obtained an opinion about whether the defendant was impaired or what his blood alcohol content was. The expert had not been placed under subpoena. And the prosecutor had even scheduled an initial meeting on December 27, 2023—the day *after* the deadline by which trial was supposed to begin. The record thus shows a total failure to prepare this simple DUI case for trial.

Delay attributable to the "fault of the prosecution" is not good cause. (*Johnson*, *supra*, 26 Cal.3d at p. 570.) And a "defendant's right to a speedy trial cannot be stifled by procrastination or neglect by public officials." (*Jackson v. Superior Court* (1991) 230 Cal.App.3d 1391, 1393.) That is exactly what happened here. The prosecution's reasons for not being ready in Merino's case were "nonsense," as respondent court acknowledged. They did not justify a continuance past the statutory deadline.

None of the usual excuses for delay are available here. The prosecution did not claim that the expert was unavailable for trial: even if that had been the case, it would not have justified a continuance, since the

prosecution failed to issue a subpoena. (See *Baustert v. Superior Court* (2005) 129 Cal.App.4th 1269, 1277 [prosecution must show due diligence in attempting to secure witness's presence by legal means].) There was no claim that COVID-19 or any other emergency prevented trial from beginning: indeed, respondent court announced that courtrooms were available, and no other trials were sent out that day.

Instead, in denying Merino's motion to dismiss, respondent court focused on his prior convictions and the "public safety" risk that he posed. But that was not a relevant consideration. All defendants have the right to a speedy trial within the statutory period, whatever their past record and however serious the charges they face. Far more serious cases than this one have been dismissed under Penal Code section 1382. (See *People v. Engram* (2010) 50 Cal.4th 1131, 1165 [first-degree burglary, in case where defendant was originally also charged with attempted murder]; *Owens v. Superior Court* (1980) 28 Cal.3d 238, 253 [armed robbery].) When trial is delayed past the last day because of the prosecution's negligence, a court must dismiss the case: it is not permitted to give the prosecution "a few more days" because of a concern that dismissal would jeopardize public safety. Indeed, the more serious the case, the greater the duty of the prosecution to do its job and prepare for trial.

III. The Court should issue a peremptory writ in the first instance

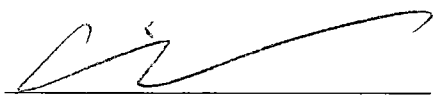
The Court may issue a peremptory writ in the first instance when "petitioner's entitlement to relief is so obvious that no purpose could reasonably be served by plenary consideration of the issue." (*Ng v. Superior Court* (1992) 4 Cal.4th 29, 34–35 [citing *Palma v. U.S. Industrial Fasteners, Inc.* (1984) 36 Cal.3d 171].) This case is a prime candidate for a *Palma* writ.

Respondent court's error is obvious. No purpose would be served by extensive briefing.

IV. Conclusion

The Court should stay trial proceedings, and then issue a peremptory writ in the first instance directing respondent court to dismiss this case.

Respectfully submitted,

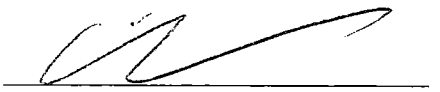


Charlie Dickson
Attorney for Petitioner

WORD COUNT CERTIFICATE

I certify that the attached petition with memorandum of points and authorities contains 2,815 words, not including the caption, index, tables, verification, and this certificate.

Executed on January 2, 2024, at San Francisco, California.



Charlie Dickson

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

Ismail Merino, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	Superior Court No. 23006243

EXHIBITS IN SUPPORT OF
PETITION FOR A WRIT OF MANDATE OR PROHIBITION

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F. JAVS Audio Recording (Dec. 26, 2023)

The transcript of the hearing on December 26, 2023 has been ordered and will be submitted to this Court as soon as it is available. (See Petition, p. 13.) The JAVS recording is attached as a compact disc. It is also available at <**http://tinyurl.com/yfrvuwt9**>.

To listen to the JAVS recording of court proceedings, install the player by opening "FTR+Player+Setup+7.6.51.exe". Then open the audio files contained in "Public / 20231226 / Department 17".

The recording is divided into 5-minute segments. The beginning timestamp of each segment is shown in the file name. For example, the segment beginning at 2:49 PM—when Merino's case was recalled—is named "Department 17_20231226-1449_01da380ab16dea50.trm".

EXHIBIT A

Complaint

BROOKE JENKINS, SB# 276290
District Attorney
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Telephone: (628) 652-4000

ATTORNEYS FOR THE PEOPLE

5/30

FILED AND ENTERED/ENDORSED
SAN FRANCISCO COUNTY
SUPERIOR COURT
5/8/2023
CLERK OF COURT
DocuSigned by:
Sharon Mennis
C903F5C4EEDE4E5
DEPUTY CLERK

THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
CITY AND COUNTY OF SAN FRANCISCO

THE PEOPLE OF THE STATE OF CALIFORNIA Plaintiff, v. ISMAEL MERINO OSORIO Defendant.	MISDEMEANOR COMPLAINT CASE NUMBER: 23006243

The Undersigned, being sworn says, on information and belief, that:

COUNT: I

The said defendant, ISMAEL MERINO OSORIO, did in the City and County of San Francisco, State of California, on or about the 27th day of April, 2023, commit the crime of DRIVING UNDER THE INFLUENCE OF ALCOHOL, to wit: Violating Section **23152(a)** of the Vehicle Code, a Misdemeanor, in that the said defendant did then and there drive a vehicle while under the influence of an alcoholic beverage.

1. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of WET RECKLESS DRIVING, violating section 23103.5 of the Vehicle Code, a Misdemeanor, on or about the 7th day of January, 2020, in the Superior Court of California, County of Alameda.

2. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of DRIVING WHILE HAVING A 0.08% OR HIGHER BLOOD ALCOHOL, violating section 23152(b) of the Vehicle Code, a Misdemeanor, on or about the 20th day of July, 202~~8~~, in the Superior Court of California, County of San Mateo. 2

COUNT: II

The said defendant, ISMAEL MERINO OSORIO, did in the City and County of San Francisco, State of California, on or about the 27th day of April, 2023, commit the crime of DRIVING WHILE HAVING A 0.08% OR HIGHER BLOOD ALCOHOL, to wit: Violating Section **23152(b)** of the Vehicle Code, a Misdemeanor, in that the said defendant did then and there drive a vehicle while having 0.08 percent or more, by weight, of alcohol in his blood.

1. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of WET RECKLESS DRIVING, violating section 23103.5 of the Vehicle Code, a Misdemeanor, on or about the 7th day of January, 2020, in the Superior Court of California, County of Alameda.

2. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of DRIVING WHILE HAVING A 0.08% OR HIGHER BLOOD ALCOHOL, violating section 23152(b) of the Vehicle Code, a Misdemeanor, on or about the 20th day of July, 2023, in the Superior Court of California, County of San Mateo.

COUNT: III

The said defendant, ISMAEL MERINO OSORIO, did in the City and County of San Francisco, State of California, on or about the 27th day of April, 2023, commit the crime of DRIVING WHEN PRIVILEGE SUSPENDED FOR PRIOR DUI CONVICTION, to wit: Violating Section **14601.2(a)** of the Vehicle Code, a Misdemeanor, in that the said defendant did willfully and unlawfully drive a motor vehicle at a time when his driving privilege was suspended and revoked pursuant to Article 2 of Chapter 12 of Division 11 of the California Vehicle Code (Vehicle Code section 23152, et seq.), due to prior conviction(s) of driving under the influence, when he had knowledge of the suspension and revocation.

1. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of WET RECKLESS DRIVING, violating section 23103.5 of the Vehicle Code, a Misdemeanor, on or about the 7th day of January, 2020, in the Superior Court of California, County of Alameda.

2. The said defendant, ISMAEL MERINO OSORIO, previously convicted of the crime of DRIVING WHILE HAVING A 0.08% OR HIGHER BLOOD ALCOHOL, violating section 23152(b) of the Vehicle Code, a Misdemeanor, on or about the 20th day of July, 2023, in the Superior Court of California, County of San Mateo.

THE BELOW EXHIBIT(S) ARE INCORPORATED BY REFERENCE HERETO AS IF SET FORTH IN FULL HEREIN, AND PROVIDE PROBABLE CAUSE TO BELIEVE THAT THE SAID DEFENDANT(S) COMMITTED SAID OFFENSE(S).

SFPD REPORT NO. 230291564
CHRONOLOGICAL REPORT(S) OF INVESTIGATION
CITIZEN'S ARREST CARD
VICTIM AND WITNESS STATEMENT(S)
LAB REPORT
OTHER: ANY AND ALL EXHIBITS, EVIDENCE, PHOTOCOPIES OF EVIDENCE AND NOTES, TAPES ATTACHED HERETO REPORT(S) OR REFERENCED IN REPORTS OR CHRONOLOGICAL REPORT OF INVESTIGATION.

Pursuant to Penal Code sections 1054 through 1054.7, the People request that, within fifteen (15) days, the defendant and/or his/her attorney disclose: (A) the names and addresses of persons, other than the defendant, he/she intends to call as witnesses at trial, together with any relevant written or recorded statements of those persons, or reports of the statements, of those persons including any reports or statements of experts made in connection with the case, and including the results of physical or mental examinations, scientific tests, experiments, or comparisons which the defendant intends to offer in evidence at the trial; (B) Any real evidence which the defendant intends to offer in evidence at the trial. This request is a continuing request, to cover not only all such material currently in existence, but all material which comes into existence to the conclusion of this case.

MARSY'S LAW

Information contained in the reports being distributed as discovery in this case may contain confidential information protected by Marsy's Law and the amendments to the California Constitution Section 28. Any victim(s) in any above referenced charge(s) is entitled to be free from intimidation, harassment, and abuse. It is unlawful for defendant(s), defense counsel, and any other person acting on behalf of the defendant(s) to use any information contained in the reports to locate or harass any victim(s) or the victim(s)'s family or to disclose any information that is otherwise privileged and confidential by law. Additionally, it is a misdemeanor violation of California Penal Code § 1054.2(a)(3) to disclose the address and telephone number of a victim or witness to a defendant, defendant's family member or anyone else. Note exceptions in California Penal Code § 1054.2(a)(2).

I state, declare, verify and certify under the penalty of perjury that the foregoing is true and correct. Executed in San Francisco, California on May 5, 2023.

DocuSigned by:
Michael Baglin
0786E4193EC247C

COURT NO. 23006243

Michael Baglin
5/5/2023

EXHIBIT B

Minute Order (May 30, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. MERINOOSORIO	**Department**	Department 17
Case Number	CRI-23006243	**Judge**	Vedica Puri
Hearing Type	Arraignment	**Hearing Date**	05-30-2023 09:00 AM
Clerk	M. Stevenson	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter	S. Enoch	**Court Officer**	

Appearance ISMAEL MERINOOSORIO (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	14601.2(a) VC/M	Misdemeanor			Not Guilty	

Add Special Appearance ELIZABETH BERTOLINO making special appearance for San Francisco District Attorney's Office.

Filing Application for Court Appointed Counsel signed by ISMAEL MERINOOSORIO.

Add Representation Court appoints the San Francisco Public Defender's Office to represent ISMAEL MERINOOSORIO.

Add Special Appearance RICARDO AVILA making special appearance for San Francisco Public Defender's Office.

Filing Defendant waives formal reading of the Complaint and advisement of rights.

Text Defense counsel reserves the right to demurrer.

Set Plea Not Guilty plea(s) entered as to each count(s) 1, 2, 3 and denial of any and all allegation(s) entered.

Record Waiver Defendant is advised of and waives their right to a speedy trial.

Add Bond Bail is set in the amount of $0.00.

Add Bond Posting ISMAEL MERINOOSORIO is released on OR, and is ordered to appear on next and all subsequent court dates(s).

Filing Defendant is ordered to adhere to the Court-ordered conditions of Electronic Monitoring. As a condition of release, the defendant shall be placed on pre-trial monitoring by the San Francisco Sheriff's Office (SFSO). Defendant shall be fitted with a SCRAM device and is ordered to comply with all terms of release as stated on the record and by SFSO. SFSO Community Programs will place an electronic monitoring device on the defendant prior to release from custody and will provide all instructions at that time. Order is signed.

The defendant is advised of the search condition they will be subject to while on electronic monitoring. Upon questioning by the Court, they state that they have had an opportunity to consult with their counsel and that they accept the conditions set forth on the record.

Set Interpreter Required ISMAEL MERINOOSORIO requires a Spanish interpreter.

Text The court finds that the interpreter used in this matter is certified / registered, that they have an oath on file with the court and that all provisions of Government Code 68561 have been satisfied.

Hearing Case continued to 07/27/2023 9:00 AM in Department 17 for Pre-Trial Conference. Defendant is ordered to appear at the next hearing unless waived by a positive report.

Hearing Status Status for This Hearing set to Occurred

EXHIBIT C

Minute Order (Sept. 29, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. MERINOOSORIO	**Department**	Department 17
Case Number	CRI-23006243	**Judge**	Brian L. Ferrall
Hearing Type	Pre-Trial Conference	**Hearing Date**	09-29-2023 09:00 AM
Clerk	S. Tam	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter	R. ESPINOSA	**Court Officer**	

Appearance ISMAEL MERINOOSORIO (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	14601.2(a) VC/M	Misdemeanor			Not Guilty	

Add Special Appearance DENNIS ANTHONY GUZMAN, JR. making special appearance for San Francisco District Attorney's Office.

Add Special Appearance MARIA AVALOSCRUZ making special appearance for San Francisco Public Defender's Office.

Text The court finds that the interpreter used in this matter is certified / registered, that they have an oath on file with the court and that all provisions of Government Code 68561 have been satisfied.

Record Waiver Defendant is advised of and does not waive their right to a speedy trial. The last day is 10/30/2023.

Hearing Case continued to 10/11/2023 9:00 AM in Department 17 for Jury Trial. Defendant is placed on 2 hour telephone standby.

Hearing Status Status for This Hearing set to Occurred

EXHIBIT D

Minute Order (Oct. 26, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. MERINOOSORIO	**Department**	Department 17
Case Number	CRI-23006243	**Judge**	Vedica Puri
Hearing Type	Jury Trial	**Hearing Date**	10-26-2023 09:00 AM
Clerk	H. Ponce	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	14601.2(a) VC/M	Misdemeanor			Not Guilty	

Add Special Appearance ASHLEY LEE making special appearance for San Francisco District Attorney's Office.

Add Special Appearance RICARDO AVILA making special appearance for San Francisco Public Defender's Office.

Text Defendant's appearance is waived today.

Text The Court finds good cause to CONTINUE PAST THE LAST DAY OF 10-30-23

Text GCLD 12-26-23

Hearing Case continued to 12/15/2023 9:00 AM in Department 17 for Jury Trial. Defendant is ordered to appear at the next hearing unless waived by NO SCRAM VIOLS.

Hearing Status Status for This Hearing set to Occurred

EXHIBIT E

Minute Order (Dec. 26, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. MERINOOSORIO	**Department**	Department 17
Case Number	CRI-23006243	**Judge**	Vedica Puri
Hearing Type	Jury Trial	**Hearing Date**	12-26-2023 09:00 AM
Clerk	M. Stevenson	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter	S. ENOCH	**Court Officer**	

Appearance ISMAEL MERINOOSORIO (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	14601.2(a) VC/M	Misdemeanor			Not Guilty	

Add Party Special Appearance CHARLIE DICKSON making special appearance for ISMAEL MERINOOSORIO's attorney of record.

Add Party Special Appearance ALBERT JOHN UJCIC III making special appearance for The People of the State of California's attorney of record.

Text People not ready.

Filing Oral motion to dismiss for lack of Speedy Trial pursuant to Penal Code 1382 made by ISMAEL MERINOOSORIO. The People do not waive notice.

Outcome Motion - Motion to Dismiss (PC 1382) is Denied.

Text The Court finds good cause to continued jury trial with a new last day of 1/16/24.

Text The court finds that the interpreter used in this matter is certified / registered, that they have an oath on file with the court and that all provisions of Government Code 68561 have been satisfied.

Hearing Case continued to 01/05/2024 9:00 AM in Department 17 for Jury Trial. Defendant ordered to appear at the next court hearing.

Hearing Status Status for This Hearing set to Occurred

EXHIBIT F

JAVS Audio Recording (Dec. 26, 2023)

SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

Ismail Merino, *Petitioner*, v. **San Francisco Superior Court,** *Respondent*; **People of the State of California,** *Real Party in Interest.*	Superior Court No. 23006243

PROOF OF SERVICE OF
PETITION FOR A WRIT OF MANDATE OR PROHIBITION

Manohar Raju, Public Defender
Matt Gonzalez, Chief Attorney
Oliver Kroll, SBN 295333
Charlie Dickson, SBN 316391
oliver.kroll@sfgov.org
555 Seventh St
San Francisco, CA 94103
(415) 575 8831

Attorneys for Petitioner

I, Charlie Dickson, declare:

I am over eighteen years of age and not a party to this action. My business address is 555 Seventh St, San Francisco, CA 94103.

On January 2, 2024, I served the **Petition for a Writ of Mandate or Prohibition** and **Exhibits in Support of Petition for a Writ of Mandate or Prohibition** electronically on:

San Francisco District Attorney
350 Rhode Island St., North Building, Suite 400N
San Francisco, CA 94103
sfda.writappservice@sfgov.org

Attorney General of the State of California
455 Golden Gate Ave., Suite 11000
San Francisco, CA 94102
sfagdocketing@doj.ca.gov

Hon. Vedica Puri
850 Bryant St, Room 101
San Francisco, CA 94103
vpuri@sftc.org

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on January 2, 2024, at San Francisco, California.

Charlie Dickson